

20STCV32549 20STCV32549

County: los-angeles

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Case Number: 20STCV32549 Hearing Date: July 10, 2026 Dept: 406

Denise Greene, an
individual,

Plaintiff,

v.

CITY OF LOS ANGELES, a
Municipal Corporation; and DOES 1 through 50,

Defendants.

Case No.: 20STCV32549

Hearing Date: July 10, 2026

[TENTATIVE]

order RE:

(1) Defendant's motion to compel answers at
deposition (CRS# 134340551488)

BACKGROUND

On August 26, 2020, Plaintiff Denise
Greene ("Plaintiff") filed this action against Defendant City of Los Angeles
("Defendant") for sexual harassment. Plaintiff alleges that she was subject to
sexual harassment as an employee of Defendant and seeks damages for emotional distress,

including depression, anxiety, related emotional injuries, and a 2018 miscarriage that is part of her emotional distress claim.

On February 25, 2026, Defendant City of Los Angeles deposed Plaintiff Denise Greene. During the deposition, Plaintiff's counsel repeatedly instructed Greene not to answer approximately 21 questions based on objections of "scope" and "privacy." The unanswered questions concerned, among other topics: (1) Greene's pregnancy and miscarriage history; (2) her medical treatment and healthcare providers; (3) alleged domestic violence and other intervening stressors; (4) the identity and relationship with the father of her first child; and (5) her work history and return to the Wilmington Recreation and Parks location.

On June 3, 2026, Defendant filed a motion (CRS# 134340551488) to compel Plaintiff's answers to the above questions and the ordering of sanctions. Plaintiff filed an opposition on June 26, 2026. On June 30, 2026, Defendant filed a reply to Plaintiff's opposition.

LEGAL STANDARD

"If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." (Code Civ. Proc., § 2025.480(a).) "If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given or the production be made on the resumption of the deposition." (Id., § 2025.480(i).)

DISCUSSION

I.

Deposition Timeline

One of the Plaintiff's points is that the Defendant's motion is untimely under Code of Civil Procedure section 2025.480(b). In calculating the statutory deadline, the Court notes that the parties agreed to extend Plaintiff's time to review and execute the deposition errata sheet, which was ultimately served on April 16, 2026. (Freeman Decl. ¶ 7.) Accordingly, the Defendant's motion was timely.

II.

Discovery

Plaintiff reads *Fairmont Ins. Co.*

v. Superior Court, 22 Cal.4th 245 (2000) as limiting Defendant's renewed deposition to updated damages to preclude duplicative discovery. While *Fairmont* recognizes that discovery after remand remains subject to statutory limitations, it also makes clear that discovery reopens anew following a remand for a new trial. (Id. at 252) Notably, *Fairmont* expressly distinguishes a new trial from a continuance in that one constitutes delay whereas the other begins proceedings anew. (Id.) That distinction underlies the Court's conclusion that discovery reopens following remand as though a trial never happened. (Id.)

III.

Privacy and Privilege Objections

A key premise of Plaintiff's objections is that the deposition must provide information only on updated damages. However, *Fairmont* is unequivocal that a new trial restarts discovery de novo to help the parties probe new issues and gaps in evidence. (Id. at 253) All information relating to Plaintiff's alleged miscarriage, including her pregnancy history and the number of miscarriages she has experienced, is relevant to the nature and extent of her claimed damages. Similarly, the abuse Plaintiff has suffered at the hands of her spouse is relevant to the existence of alternative sources of her emotional injuries. Likewise, Plaintiff's possible return to the Wilmington Recreation and Parks location and her experiences there are relevant to how the workplace contributed to her injuries.

Defendant is entitled to discover the identities of healthcare providers who treated Plaintiff for the physical or emotional injuries she attributes to Defendant's alleged conduct.

However, some of the deposition questions that were unanswered are unrelated to the claims at issue. The identity of Plaintiff's first child, whether the child's father is incarcerated, and when Plaintiff last saw him bear no apparent relevance to Plaintiff's sexual harassment claims or the damages she seeks.

CONCLUSION

Defendant's motion is GRANTED IN PART and DENIED IN PART.

Within
30 days, Plaintiff shall appear for a further deposition and answer the following questions and any reasonable follow-up questions:

Q. And in your lifetime, how many times have you been pregnant?

Q: How
many times have you had a miscarriage?

Q: And
what was the purpose of your telephone call with Dr. Tzu?

Q: Okay.
Other than those two times, has he assaulted you on other occasions?

Q: And
have you been pregnant since that time?

Q: Now, you wanted to go back to Wilmington,
correct? That area?

Q:
And at some point, you went back to Wilmington; correct?

Q: And have you been pregnant since 2022?

Q: Okay. Other than Dr. Tzu, what other
doctors have you seen in the last four years?

Q: Have you seen an OB/GYN since 2022?

Q: Who
is the father of your first child?

Q: Did the father of your first child

subject you to any violence?

Plaintiff is not
required to respond to the following questions:

Q: When
was the last time you saw the father of your first child?

Q: To
your knowledge, is the father of your first child incarcerated?